United States District Court
Northern District of California

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

SHANNON SMITH, et al.,

Defendants.

Case No. 26-cv-07504-LJC

ORDER ADDRESSING APPLICATION TO PROCEED IN FORMA PAUPERIS, DENYING MOTION FOR PROTECTIVE ORDER, AND REQUIRING FILING OF STATE COURT DECISION

Re: Dkt. Nos. 2, 6

A. Application to proceed in Forma Pauperis

Plaintiff Brendan Ngehsi Newanforbi, pro se, applies to proceed in forma pauperis (IFP). ECF No. 2. Plaintiff used a form published by the Administrative Office of the Courts rather than this district's specific form, and answered "No," "N/A," or "None" to every question except the amount of money he has in a checking or savings account, where he indicated he has $105.45. Though it appears likely that Plaintiff will qualify for IFP status, the form that he used does not provide all of the information that this Court typically considers, and his answers lack sufficient context to determine whether they are credible. The Clerk is therefore instructed to attach a copy of this Court's form IFP application to this Order, and Plaintiff is ORDERED to complete and file that form no later than August 13, 2026. If Plaintiff's new form indicates that he has no income or expenses of any kind, Plaintiff must attach a separate statement explaining how he meets basic needs. The Court will resolve Plaintiff's application after those documents are filed.

B. State Court Decision

In a motion for a protective order governing confidential information (addressed further below), Plaintiff indicates that this case "arises from the substantially the same nucleus of

operative facts as [a] now-disposed State Action," which was resolved "by order sustaining Defendants' demurrer." ECF No. 6. Under doctrines of preclusion, parties are sometimes prevented from relitigating claims or issues that they have already lost in another case. To allow the Court to determine whether case preclusion, issue preclusion, or any related doctrine might apply here, Plaintiff is ORDERED to file a copy of the state court's decision no later than August 13, 2026.

C. Motion for Protective Order

Plaintiff moves for a protective order governing confidential information. ECF No. 6. This motion appears to be motivated by Plaintiff's concern that under a protective order issued by the state court, he is subject to an obligation to return documents no later than sixty days after the conclusion of either that case or a case that Plaintiff filed in the Eastern District of California (whichever is later), and that he wishes to retain those documents for use in this case. *See* ECF No. 6-1 (Plf.'s Decl.) ¶ 6; ECF No. 6-1 at 15 (state court protective order, section VIII). Plaintiff therefore moves for a protective order that would, among other things, "authorize the retention and use of materials previously produced in the State Action, subject to equivalent protections." ECF No. 6 at 8. It is not obvious that this Court has authority to alter the state court's requirement to return or destroy documents, even if this Court were to impose equivalent protections in its own protective order.

Plaintiff suggests that the state court's July 15, 2026 order sustaining a demurrer started the sixty-day clock, but he does not address the status of the Eastern District action. This Court takes judicial notice from the public docket of the Eastern District action that a motion to dismiss is currently under submission in that case but not yet resolved. *Newanforbi v. Derrick*, No. 2:26-cv-00004-DJC-JDP (E.D. Cal.). Because one of the two cases has not yet ended, the deadline in the protective order running from "whichever is later" to be resolved has not yet started to run. *See* ECF No. 6-1 at 15. The "conclusion" of litigation is also defined in the state court's protective order "as thirty (30) days after the expiration of the time to appeal or challenge any final judgment, settlement, or consent decree," *id.*, so Plaintiff has at least somewhat more time before any deadline will be imminent even if the Eastern District case were to be dismissed.

Plaintiff's Motion for a Protective Order is therefore DENIED without prejudice to any request for relief from the return-or-destroy deadline that Plaintiff might submit to the state court, or to the parties submitting a renewed request for a protective order in this case if it proceeds to the point where Defendants are served and appear. In that event, and if the case remains assigned to the undersigned magistrate judge at that time, the parties are referred to section F.6 of the Civil Standing Order for Magistrate Judge Lisa J. Cisneros for procedures to submit a proposed protective order.

IT IS SO ORDERED.

Dated: July 23, 2026

LISA J. CISNEROS
United States Magistrate Judge

United States District Court
Northern District of California

Clear Form

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

Plaintiff,	CASE NO. _____
vs.	**APPLICATION TO PROCEED IN FORMA PAUPERIS** **(Non-prisoner cases only)**
Defendant.	

I, _____, declare, under penalty of perjury that I am the plaintiff in the above entitled case and that the information I offer throughout this application is true and correct. I offer this application in support of my request to proceed without being required to prepay the full amount of fees, costs or give security. I state that because of my poverty I am unable to pay the costs of this action or give security, and that I believe that I am entitled to relief.

In support of this application, I provide the following information:

1. Are you presently employed? Yes ___ No ___

If your answer is "yes," state both your gross and net salary or wages per month, and give the name and address of your employer:

Gross: _____ Net: _____

Employer: _____

_____

If the answer is "no," state the date of last employment and the amount of the gross and net salary

and wages per month which you received.

_____

_____

_____

2. Have you received, within the past twelve (12) months, any money from any of the following sources:

a. Business, Profession or self employment? Yes ____ No ____

b. Income from stocks, bonds, or royalties? Yes ____ No ____

c. Rent payments? Yes ____ No ____

d. Pensions, annuities, or life insurance payments? Yes ____ No ____

e. Federal or State welfare payments, Social Security or other government source? Yes ____ No ____

If the answer is "yes" to any of the above, describe each source of money and state the amount received from each.

_____

_____

3. Are you married? Yes ____ No ____

Spouse's Full Name: _____

Spouse's Place of Employment: _____

Spouse's Monthly Salary, Wages or Income:

Gross $_____ Net $_____

4. a. List amount you contribute to your spouse's support:$ _____

b. List the persons other than your spouse who are dependent upon you for support and indicate how much you contribute toward their support. (NOTE: For minor

children, list only their initials and ages. DO NOT INCLUDE THEIR NAMES.)

_____

_____

5. Do you own or are you buying a home? Yes ____ No ____

Estimated Market Value: $_____ Amount of Mortgage: $_____

6. Do you own an automobile? Yes ____ No ____

Make _____ Year _____ Model _____

Is it financed? Yes _____ No _____ If so, Total due: $ _____

Monthly Payment: $ _____

7. Do you have a bank account? Yes ____ No ____ (Do not include account numbers.)

Name(s) and address(es) of bank: _____

_____

Present balance(s): $ _____

Do you own any cash? Yes ____ No ____ Amount: $ _____

Do you have any other assets? (If "yes," provide a description of each asset and its estimated market value.) Yes ____ No ____

_____

8. What are your monthly expenses?

Rent: $ _____ Utilities: _____

Food: $ _____ Clothing: _____

Charge Accounts:

Name of Account	Monthly Payment	Total Owed on This Account
_____	$ _____	$ _____
_____	$ _____	$ _____
_____	$ _____	$ _____

9. Do you have any other debts? (List current obligations, indicating amounts and to whom they are payable. Do not include account numbers.)

_____

_____

10. Does the complaint which you are seeking to file raise claims that have been presented in other lawsuits? Yes ____ No ____

Please list the case name(s) and number(s) of the prior lawsuit(s), and the name of the court in which they were filed.

_____

_____

I declare under the penalty of perjury that the foregoing is true and correct and understand that a false statement herein may result in the dismissal of my claims.

_____ _____

DATE SIGNATURE OF APPLICANT